HAVING thus marſhalled the ſeveral ſpecies of corporations, let us next proceed to conſider, 1. How corporations, in general, may be created. 2. What are their powers, capacities, and incapacities. 3. How corporations are viſited. And 4. How they may be diſſolved.

I. CORPORATIONS, by the civil law, ſeem to have been created by the mere act, and voluntary aſſociation of their members; provided ſuch convention was not contrary to law, for then it was *illicitum collegium*[g]. It does not appear that the prince's conſent was neceſſary to be actually given to the foundation of them; but merely that the original founders of theſe voluntary and friendly ſocieties (for they were little more than ſuch) ſhould not eſtabliſh any meetings in oppoſition to the laws of the ſtate.

BUT, with us in England, the king's conſent is abſolutely neceſſary to the erection of any corporation, either impliedly or expreſſly given. The king's implied conſent is to be found in corporations which exiſt by force of the *common law*, to which our former kings are ſuppoſed to have given their concurrence; common law being nothing elſe but cuſtom, ariſing from the univerſal agreement of the whole community. Of this ſort are the king himſelf, all biſhops, parſons, vicars, churchwardens, and ſome others; who by common law have ever been held (as far as our books can ſhew us) to have been corporations, *virtute officii:* and this incorporation is ſo inſeparably annexed to their offices, that we cannot frame a complete legal idea of any of theſe perſons, but we muſt alſo have an idea of a corporation, capable to tranſmit his rights to his ſucceſſors, at the ſame time. Another method of implication, whereby the king's conſent is preſumed, is as to all corporations by *preſcription*, ſuch as the city of London, and many others[h], which have exiſted as corporations, time

[g] *Ff.* 47. 22. 1. *Neque ſocietas, neque collegium, neque hujuſmodi corpus paſſim omnibus habere conceditur; nam et legibus, et ſenatus conſultis, et principalibus conſtitutionibus ea res coercetur. Ff.* 3. 4. 1.

[h] 2 Inſt. 330.

whereof